

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.
Date purchased

TYREK LLOYD, CHARLES LLOYD, JR., ASIA
THOMPSON and ASIA THOMPSON as mother and
natural guardian for F. L. ,

Plaintiff designates New York
County as the place of trial,

Plaintiff,

The basis of venue is
County in which cause of action arose

- against -

SUMMONS

THE CITY OF NEW YORK and NYC DETECTIVE
SILVERIO,

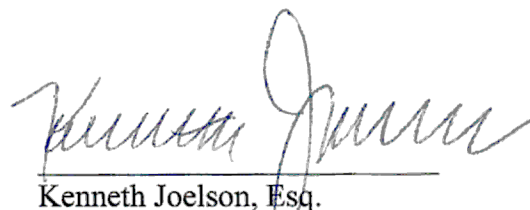
Plaintiff(s) reside at
2158 2nd Avenue
County of New York

Defendants.

To the above named Defendants

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within **20** days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 23, 2019



Kenneth Joelson, Esq.
Law Office of Kenneth Joelson
Attorney for Plaintiffs
33 West 60th Street, Suite 227
New York, New York 10023
(212) 873-7063

Defendants' Address:

*NYC - 1 Centre Street, New York, New York 10007
Police Dept - 1 Police Plaza, New York, New York 10038*

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
TYREK LLOYD, CHARLES LLOYD, JR., ASIA
THOMPSON and ASIA THOMPSON as mother and
natural guardian for F. L. ,

VERIFIED COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK and NYC DETECTIVE
SILVERIO,

Defendants.
-----X

Plaintiffs, complaining of defendants, by their attorney, Kenneth Joelson, Esq., respectfully shows to this Court and alleges:

FIRST: At all times hereinafter mentioned, defendant, The City of New York, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

SECOND: At all times hereinafter mentioned, the New York City Police Department, was and still is an agency of the defendant, The City of New York, engaged in the practice of law enforcement.

THIRD: At all times hereinafter mentioned, the defendant, the City of New York, employed certain police officers as employees of the New York City Police Department and The City of New York.

FOURTH: At all times hereinafter mentioned, the defendant, Detective Silverio, was an employee of the New York City Police Department and defendant, The City of New York.

FIFTH: At all times hereinafter mentioned, the defendant, Detective Silverio, had been issued shield number 5916.

SIXTH: On or about the 17th day of January, 2019, a Notice of Claim on behalf of each of the plaintiffs was duly served upon the defendants, The City of New York and Detective Silverio, in compliance with General Municipal Law Section 50-e.

SEVENTH: More than 30 days have elapsed since the service of said Notice of Claim and adjustment or payment thereof has been neglected or refused.

EIGHTH: This action has been commenced within one year and ninety days after the happening of the events upon which these claims are based.

NINTH: That on or about the 8th day of January, 2019, while the plaintiffs were lawfully within the premises located at 2158 Second Avenue, in the County, City and State of New York, the apartment was searched and they were detained by certain employees of the New York City Police Department, including defendant, Detective Silverio, without just cause, reason or provocation and without a valid search warrant being exhibited.

**AS AND FOR A FIRST CAUSE OF
ACTION OF PLAINTIFF TYREK LLOYD**

TENTH: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "NINTH" as if set forth herein at length.

ELEVENTH: That at the time of said detention of plaintiff, defendant, Detective Silverio, and others were acting in their capacity as police officers employed by the New York City Police Department and defendant, The City of New York.

TWELFTH: That said detention of plaintiff was unjust, improperly investigated and without authority of law and in violation of Article 690 of the Criminal Procedure Law.

THIRTEENTH: That said detention of the plaintiff, Tyrek Lloyd, constituted intentional, wanton, careless, reckless and malicious conduct.

FOURTEENTH: That as a result of the aforesaid illegal detention, plaintiff's health and earning capacity was impaired, he was caused to suffer great mental distress and his reputation and character was injured.

FIFTEENTH: That the amount of damages sought exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF TYREK LLOYD

SIXTEENTH: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "FIFTEENTH" as if set forth herein at length.

SEVENTEENTH: That subsequent to his arrest and detention, plaintiff, Tyrek Lloyd, has been deprived of his civil rights, privileges and immunities as secured pursuant to the United States and New York State Constitutions and other laws.

EIGHTEENTH: That said deprivation of plaintiff's civil rights constituted intentional, wanton, reckless and malicious conduct on the part of defendants.

NINETEENTH: That as a result of the aforesaid deprivation of rights, plaintiff's health was impaired, he suffered great and violent shock to his nervous system causing great mental distress, anxiety, depression, humiliation and embarrassment and his reputation and character was injured.

TWENTIETH: That the amounts of damages sought exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF TYREK LLOYD**

TWENTY-FIRST: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "TWENTIETH" as if set forth herein at length.

TWENTY-SECOND: The aforementioned acts in knowingly and purposely causing and perpetuating plaintiff's unlawful detention and the failure to exhibit search warrant were willful and malicious acts and were intended to cause plaintiff physical, mental and emotional illness, distress, fright, fear and shock as well as to conceal defendants' improper and illegal behavior and conduct.

TWENTY-THIRD: That as a result of defendants' actions in intentionally inflicting mental distress, plaintiff has been caused to become sick, sore, lame and disabled as hereinbefore set forth.

TWENTY-FOURTH: That the amount of damages sought exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF CHARLES LLOYD, JR.**

TWENTY-FIFTH: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "NINTH" as if set forth herein at length.

TWENTY-SIXTH: That at the time of said detention of plaintiff, defendant, Detective Silverio, and others were acting in their capacity as police officers employed by the New York City Police Department and defendant, The City of New York.

TWENTY-SEVENTH: That said detention of plaintiff was unjust, improperly investigated and without authority of law and in violation of Article 690 of the Criminal Procedure Law.

TWENTY-EIGHTH: That said detention of the plaintiff, Charles Lloyd, Jr., constituted intentional, wanton, careless, reckless and malicious conduct.

TWENTY-NINTH: That as a result of the aforesaid illegal detention, plaintiff, Charles Lloyd's, health and earning capacity was impaired, he was caused to suffer great mental distress and his reputation and character was injured.

THIRTIETH: That the amount of damages sought exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF CHARLES LLOYD, JR.**

THIRTY-FIRST: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "NINTH" as if set forth herein at length.

THIRTY-SECOND: As a result of the foregoing acts of the defendants, plaintiff, Charles Lloyd, Jr., has been deprived of his civil rights, privileges and immunities as secured pursuant to the United States and New York State Constitutions and other laws.

THIRTY-THIRD: That said deprivation of plaintiff's civil rights constituted intentional, wanton, reckless and malicious conduct on the part of defendants.

THIRTY-FOURTH: That as a result of the aforesaid deprivation of rights, plaintiff's health was impaired, he suffered great and violent shock to his nervous system causing great mental distress, anxiety, depression, humiliation and embarrassment and his reputation and character was injured.

THIRTY-FIFTH: That the amounts of damages sought exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF CHARLES LLOYD, JR.**

THIRTY-SIXTH: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "NINTH" as if set forth herein at length.

THIRTY-SEVENTH: The aforementioned acts in knowingly and purposely causing and perpetuating plaintiff's, unlawful detention and the failure to exhibit search warrant were willful and malicious acts and were intended to cause plaintiff physical, mental and emotional illness, distress, fright, fear and shock as well as to conceal defendants' improper and illegal behavior and conduct.

THIRTY-EIGHTH: That as a result of defendants' actions in intentionally inflicting mental distress, plaintiff has been caused to become sick, sore, lame and disabled as hereinbefore set forth.

THIRTY-NINTH: That the amount of damages sought exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ASIA THOMPSON**

FORTIETH: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "NINTH" as if set forth herein at length.

FORTY-FIRST: That at the time of said detention of plaintiff, defendant, Detective Silverio, and others were acting in their capacity as police officers employed by the New York City Police Department and defendant, The City of New York.

FORTY-SECOND: That said detention of plaintiff was unjust, improperly investigated and without authority of law and in violation of Article 690 of the Criminal Procedure Law.

FORTY-THIRD: That said detention of the plaintiff, Asia Thompson, constituted intentional, wanton, careless, reckless and malicious conduct.

FORTY-FORTH: That as a result of the aforesaid illegal detention, plaintiff, Asia Thompson's, health and earning capacity was impaired, he was caused to suffer great mental distress and his reputation and character was injured.

FORTY-FIFTH: That the amount of damages sought exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ASIA THOMPSON**

FORTY-SIXTH: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "NINTH" as if set forth herein at length.

FORTY-SEVENTH: As a result of the foregoing acts of the defendants, plaintiff, Asia Thompson, has been deprived of her civil rights, privileges and immunities as secured pursuant to the United States and New York State Constitutions and other laws.

FORTY-EIGHTH: That said deprivation of plaintiff's civil rights constituted intentional, wanton, reckless and malicious conduct on the part of defendants.

FORTY-NINTH: That as a result of the aforesaid deprivation of rights, plaintiff's health was impaired, he suffered great and violent shock to her nervous system causing great mental distress, anxiety, depression, humiliation and embarrassment and her reputation and character was injured.

FIFTIETH: That the amounts of damages sought exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ASIA THOMPSON**

FIFTY-FIRST: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "NINTH" as if set forth herein at length.

FIFTY-SECOND: The aforementioned acts in knowingly and purposely causing and perpetuating plaintiff's, unlawful detention and the failure to exhibit search warrant were willful and malicious acts and were intended to cause plaintiff physical, mental and emotional illness, distress, fright, fear and shock as well as to conceal defendants' improper and illegal behavior and conduct.

FIFTY-THIRD: That as a result of defendants' actions in intentionally inflicting mental distress, plaintiff has been caused to become sick, sore, lame and disabled as hereinbefore set forth.

FIFTY-FORTH: That the amount of damages sought exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A TENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF F. L. BY HER M/N/G ASIA THOMPSON

FIFTY-FIFTH: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "NINTH" as if set forth herein at length.

FIFTY-SIXTH: That at all times plaintiff, Asia Thompson, was the mother and natural guardian of the infant, F. L.

FIFTY-SEVENTH: That at the time of said detention of plaintiff, defendant, Detective Silverio, and others were acting in their capacity as police officers employed by the New York City Police Department and defendant, The City of New York.

FIFTY-EIGHTH: That said detention of plaintiff was unjust, improperly investigated and without authority of law and in violation of Article 690 of the Criminal Procedure Law.

FIFTY-NINTH: That said detention of the infant, F. L. constituted intentional, wanton, careless, reckless and malicious conduct.

SIXTIETH: That as a result of the aforesaid illegal detention, infant, F. L.'s, health and earning capacity was impaired, she was caused to suffer great mental distress and her reputation

and character was injured.

SIXTY-FIRST: That the amount of damages sought exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A ELEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF F. L. BY HER M/N/G ASIA THOMPSON**

SIXTY-SECOND: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "NINTH" as if set forth herein at length.

SIXTY-THIRD: As a result of the foregoing acts of the defendants, infant, F. L., by her mother and natural guardian, Asia Thompson, has been deprived of her civil rights, privileges and immunities as secured pursuant to the United States and New York State Constitutions and other laws.

SIXTY-FORTH: That said deprivation of plaintiff's civil rights constituted intentional, wanton, reckless and malicious conduct on the part of defendants.

SIXTY-FIFTH: That as a result of the aforesaid deprivation of rights, plaintiff's health was impaired, she suffered great and violent shock to her nervous system causing great mental distress, anxiety, depression, humiliation and embarrassment and her reputation and character was injured.

SIXTY-SIXTH: That the amounts of damages sought exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A TWELFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF F. L. BY HER M/N/G ASIA THOMPSON**

SIXTY-SEVENTH: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "NINTH" as if set forth herein at length.

SIXTY-EIGHTH: The aforementioned acts in knowingly and purposely causing and perpetuating plaintiff's, unlawful detention and the failure to exhibit search warrant were willful and

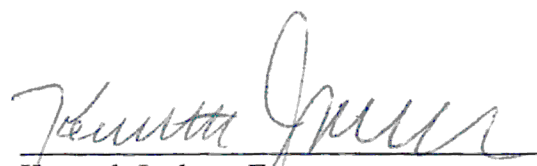
malicious acts and were intended to cause plaintiff physical, mental and emotional illness, distress, fright, fear and shock as well as to conceal defendants' improper and illegal behavior and conduct.

SIXTY-NINTH: That as a result of defendants' actions in intentionally inflicting mental distress, plaintiff has been caused to become sick, sore, lame and disabled as hereinbefore set forth.

SEVENTIETH: That the amount of damages sought exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgement against defendants on the First Cause of Action, Second Cause of Action, Third Cause of Action, Fourth Cause of Action, Fifth Cause of Action, Sixth Cause of Action, Seventh Cause of Action, Eighth Cause of Action, Ninth Cause of Action, Tenth Cause of Action, Eleventh Cause of Action and Twelfth Cause of Action, together with punitive damages, interest, costs and disbursements.

Dated: New York, New York
December 23, 2019



Kenneth Joelson, Esq.
Law Office of Kenneth Joelson
Attorney for Plaintiff
33 West 60th Street, Suite 227
New York, New York 10023
(212) 873-7063

I, the undersigned, am an attorney admitted to practice in the courts of New York, and

Check Applicable Box
☐ Attorney's
Certification
☐ Attorney's
Verification
by
Affirmation

certify that the annexed
has been compared by me with the original and found to be a true and complete copy thereof.

say that: I am the attorney of record, or of counsel with the attorney(s) of record, for
. I have read the annexed

know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information
and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon
knowledge, is based upon the following.

The reason I make this affirmation instead of _____ is _____

I affirm that the foregoing statements are true under penalties of perjury.

Dated: _____

(Print signer's name below signature)

STATE OF NEW YORK, COUNTY OF NEW YORK

SS:

Check Applicable Box
☒ Individual
Verification
☐ Corporate
Verification

Tyrek Lloyd being sworn says: I am plaintiff
in the action herein; I have read the annexed Summons & Verified Complaint

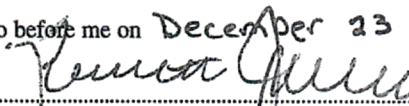
know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on
information and belief, and as to those matters I believe them to be true.

the _____ of
a corporation, one of the parties to the action; I have read the annexed

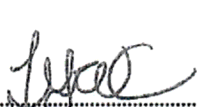
know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on
information and belief, and as to those matters I believe them to be true.

My belief, as to those matters therein not stated upon knowledge, is based upon the following:

Sworn to before me on December 23, 2019


KENNETH JOELSON
Notary Public, State of New York
No. 02JO4624342

STATE OF NEW YORK, COUNTY OF _____
Qualified in New York County
My Commission Expires March 30, 2022


Tyrek Lloyd
(Print signer's name below signature)

being sworn says: I am not a party to the action, am over 18 years of

age and reside at

On _____, 20____, I served a true copy of the annexed
in the following manner:

Check Applicable Box
☐ Service
by Mail
☐ Personal
Service
☐ Service by
Facsimile
☐ Service by
Electronic
Means
☐ Overnight
Delivery
Service

by mailing the same in a sealed envelope, with postage prepaid thereon, in a post-office or official depository of the U.S. Postal Service,
addressed to the address of the addressee(s) indicated below, which has been designated for service by the addressee(s) or, if no such address
has been designated, is the last-known address of the addressee(s):

by delivering the same personally to the persons at the address indicated below:

by transmitting the same to the attorney by facsimile transmission to the facsimile telephone number designated by the attorney for that
purpose. In doing so, I received a signal from the equipment of the attorney served indicating that the transmission was received,
and mailed a copy of same to that attorney, in a sealed envelope, with postage prepaid thereon, in a post office or official depository of the
U.S. Postal Service, addressed to the address of the addressee(s) as indicated below, which has been designated for service by the
addressee(s) or, if no such address has been designated, is the last-known address of the addressee(s):

by transmitting the same to the attorney by electronic means upon the party's written consent. In doing so, I indicated in the subject matter
heading that the matter being transmitted electronically is related to a court proceeding:

by depositing the same with an overnight delivery service in a wrapper properly addressed, the address having been designated by the
addressee(s) for that purpose or, if none is designated, to the last-known address of addressee(s). Said delivery was made prior to the latest
time designated by the overnight delivery service for overnight delivery. The address and delivery service are indicated below:

Sworn to before me on _____, 20____

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

TYREK LLOYD, CHARLES LLOYD, JR., ASIA
THOMPSON and ASIA THOMPSON as mother and
natural guardian for F. L. ,

Plaintiff,

-against-

THE CITY OF NEW YORK and NYC DETECTIVE SILVERIO,

Defendants.

SUMMONS & VERIFIED COMPLAINT

Plaintiff **JOELSON & ROCHKIND**
Attorneys for

149 WEST 72nd STREET
NEW YORK, N.Y. 10023
(212) 873-7063

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: December 23, 2019

Signature Kenneth Joelson, Esq.

Print Signer's Name.....

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐NOTICE OF
ENTRY

that the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

☐NOTICE OF
SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on

20

, at

M.

Dated:

JOELSON & ROCHKIND

Attorneys for

To:

149 WEST 72nd STREET
NEW YORK, N.Y. 10023